

26SMCV03671 26SMCV03671

County: los-angeles

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

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CASE NUMBER

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MOTION

Motion

to Compel Arbitration

MOVING PARTIES

Defendants

Mercedes-Benz USA, LLC and Fletcher Jones Motor Cars, Inc. dba Mercedes-Benz
of Beverly Hills

OPPOSING PARTY

none

MOTION

This case arises from allegations that Defendant leased a faulty vehicle to Plaintiff and failed to repair or replace it, in violation of the Song-Beverly Act.

On July 7, 2026, Plaintiff Jaklin Nemanabrahim ("Plaintiff") filed suit against Defendants Mercedes-Benz USA, LLC ("Mercedes") and Fletcher Jones Motor Cars, Inc. dba Mercedes-Benz of Beverly Hills ("Fletcher"), alleging three causes of action for violations of the Song-Beverly Act.

Defendants now move to compel Plaintiff's claims to arbitration and to stay the action pending the outcome of arbitration proceedings. The motion is unopposed.

LEGAL

STANDARDS – MOTION TO COMPEL ARBITRATION

"[T]he advantages of arbitration include a presumptively less costly, more expeditious manner of resolving disputes. It follows a party to a valid arbitration agreement has a contractual right to have its dispute with another party to the contract resolved quickly and inexpensively." (Henry v. Alcove Investment, Inc. (1991) 233 Cal.App.3d 94, 99–100 [cleaned up].)

Thus, "on petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2; see also

EFund

Capital Partners v. Pless (2007) 150 Cal.App.4th 1311, 1320 [the language in section 1281.2 compelling arbitration is mandatory].) The right to compel arbitration exists unless the court finds that the right has been waived by a party's conduct, other grounds exist for revocation of the agreement, or where a pending court action arising out of the same transaction creates the possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2, subds.

(a)-(c).)

“On a petition to compel

arbitration, the trial court must first determine whether an agreement to arbitrate the controversy exists.

Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. The

party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature.” (Bannister

v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541, 543-544 [cleaned up].) The party seeking to compel arbitration must also “plead and prove a

prior demand for arbitration and a refusal to arbitrate under the agreement.” (Mansouri v. Superior

Court (2010) 181 Cal.App.4th 633, 640-641.)

And while the moving party on a

motion to compel arbitration “bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, [a] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination.” (Ruiz

v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842 [cleaned

up]; see also Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236 [“The party

seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability”].)

ANALYSIS

In support of the motion, Defendants advance the Lease Agreement between Plaintiff as Lessee and “Mercedes Benz of Beverly Hills” as Lessor. The Lease Agreement defines

“we,” “us,” and “our,” as referring to Mercedes Benz of Beverly Hills as lessor and, after the lease is assigned, to Mercedes-Benz Vehicle Trust, or its successors and assigns. (Ex. 1 to Allison

Decl. at p. 1.) Page 4 of the Lease
contains the following arbitration provision:

Any claim or dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any sue), between you and us or any of Our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes Benz USA LLC (each a "Third Party Beneficiary"), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of either you, us, or a Third Party Beneficiary, be resolved by a neutral, binding arbitration and not by a court action. Any claim or dispute is to be arbitrated on an individual basis and not as a class action. The arbitration shall be administered by the American Arbitration Association, or by any other organization that you may choose, subject to our or a Third Party Beneficiary's approval. You may get a copy of the rules of the American Arbitration Association by visiting its website at www.adr.org.

(Ex.
1 to Allison Decl. at p. 4 [emphasis added].)

Thus, Defendants have has demonstrated the existence of a valid and binding agreement to arbitrate which Fletcher has standing to compel as a signatory and Mercedes has standing to compel as an expressly-named Third Party Beneficiary of the Lease Agreement.

CONCLUSION

Finding Defendants have produced a valid and binding arbitration agreement, the Court grants Defendants' unopposed motion to compel arbitration and stay these proceedings pending the outcome of arbitration proceedings.

Further, the Court vacates the Case Management Conference scheduled for November 5, 2026 and sets a Status Conference re Arbitration on May 25, 2027 at 8:30 A.M. in Department 207. The parties shall file a Joint Report regarding the status of the arbitration no later than 5 court days before the scheduled Status Conference.

Further, the Court will enter the proposed
Order lodged on August 11, 2026 in conformity with the ruling.

Mercedes shall provide notice of the Court's ruling/Order, and file
the notice with a proof of service forthwith.

DATED: September 16, 2026 ____/S/_____

Michael
E. Whitaker

Judge
of the Superior Court